

3. The Petitioner's counsel contends that the FIR was lodged with an unexplained delay of nearly five to six months, which renders the prosecution's narrative doubtful. He maintains that the allegations against the Petitioner are false and motivated by ulterior considerations. The USB allegedly submitted by the Complainant to the Investigating Officer is fabricated. The counsel asserts that the Petitioner is a teacher of good repute with no prior criminal record and that no complaint of a similar nature has ever been made against him by any student or parent.

The investigation has concluded and the Petitioner is not required for further inquiry. His continued incarceration would serve no lawful purpose. The counsel therefore prays for the grant of post-arrest bail.

4. The Deputy District Public Prosecutor, assisted by the Complainant's counsel, has opposed this application. He submits that the Petitioner held a position of authority and trust as a teacher and gravely abused that fiduciary relationship by sexually abusing his minor student on school premises. He contends that the victim as well as PWs Muhammad Shoaib and Abdul Rahim have recorded statements under section 161 Cr.P.C., which fully support the prosecution's case. They are corroborated by video footage, whose authenticity has been confirmed through forensic analysis. The DDPP argues that sufficient incriminating material exists against the Petitioner. Hence, he is not entitled to the grant of bail.

5. Arguments heard. Record perused.

6. The Petitioner has been named in the FIR with a specific allegation of committing sodomy upon a minor student. The victim, A.S., and prosecution witnesses Muhammad Shoaib and Abdul Rahim have recorded statements under section 161 Cr.P.C. During the investigation, the Complainant produced a USB device containing video footage of the incident, which appears, on initial assessment, to corroborate the oral version. The forensic report confirms its authenticity, stating that no editing features were detected in the visual content of the clip. The video evidence also forms the basis of the charge under section 292 PPC, which prohibits circulation and distribution of obscene material. Based on the evidence collected, the police have determined that the Petitioner is *prima facie* involved in the commission of the offence.

7. Previously, FIR No.630/2025 dated 06.05.2025 was registered against the Petitioner. During the course of that investigation, he surrendered his mobile phone, which was found to contain an alarming volume of pornographic content, including 769 video clips. This material lends support to the prosecution's case and suggests a pattern of predatory conduct.

8. On a tentative assessment, sufficient incriminating material is available to connect the Petitioner with the commission of the offence, which falls within the prohibitory clause of section 497 Cr.P.C. In view of the nature of the accusation, the evidentiary support presently available, and the likelihood of the Petitioner posing a risk to other children if released, this Court is not inclined to exercise discretion in his favour. The petition is, therefore, **dismissed**.

9. Before parting with this order, it must be observed that the allegations in this case raise concerns beyond the immediate question of bail. While the issue of the Petitioner's guilt or innocence will be determined at trial, it is necessary that the broader context in which the alleged incident occurred be examined. That serious accusations of sexual abuse could arise on school premises against a teacher entrusted with the moral and intellectual development of children underscores the need to monitor educational institutions and hold them accountable for student safety.

10. The Government of Punjab, through the School Education Department, must undertake a province-wide review of compliance with existing safety protocols and, where necessary, prescribe uniform minimum standards applicable to all schools, irrespective of their affiliation or ownership. At a minimum, these standards should include:

- (a) Vetting and background checks of all teaching and non-teaching staff through police and NADRA databases, including the compulsory submission of a valid Police Character Certificate at the time of recruitment. The Ministry of Law and Justice has framed the Anti-Rape (Sex Offenders Register) Rules, 2023, pursuant to section 24(2) of the Anti-Rape (Investigation and Trial) Act, 2021, which were notified vide SRO 1326(I)/2023 dated 13.09.2023. Rule 6 thereof restricts access to the Register solely for the purpose of investigation, prosecution, or production in pending proceedings before a court. The Ministry of Law and Justice and the Special Committee constituted under section 15 of the Act are advised to consider allowing educational institutions access to such information through defined channels (such as the District Police Officer concerned), with appropriate procedural and data protection safeguards.
- (b) Compulsory training in child protection and abuse identification.

- (c) Installation of CCTV cameras and their integration with the system of the Punjab Safe Cities Authority.
- (d) Establishment of confidential and accessible complaint mechanisms for students and parents.
- (e) Periodic compliance audits by independent teams.

11. In addition to vetting new employees, all schools must conduct a comprehensive background check of their currently serving teaching and non-teaching personnel through the police and NADRA databases. Institutions that fail to screen existing staff for past criminal conduct, including offences involving sexual abuse, risk perpetuating unsafe conditions for children. The School Education Department should prescribe a timeline and establish a compliance mechanism for this screening.

12. The need for a mandatory Code of Conduct for educators is equally pressing. Without structural accountability, the recurrence of such incidents cannot be ruled out. Furthermore, school owners and principals must be made legally responsible for lapses in reporting abuse or failure to safeguard students under their care. Legislative or policy amendments may be considered, if necessary.

13. There is a need to protect vulnerable individuals across all sectors of the society, not just educational institutions. While the Anti-Rape (Sex Offenders Register) Rules, 2023, represent a commendable step towards maintaining a central database of convicted sex offenders for the purpose of investigation, prosecution and court use, they do not provide any direct or indirect mechanism whereby all vulnerable-sector employers may verify whether prospective employees have previously been convicted of sexual offences. It is, therefore, recommended that the Ministry of Law and Justice, in consultation with the National Police Bureau and other relevant stakeholders, consider appropriate amendments to the 2023 Rules. Any proposed amendments must, of course, align with constitutional principles, including Articles 4, 14 and 25 of the Constitution.

14. The Senior Additional Registrar of this Bench shall send a copy of this order to the Secretary, Ministry of Law and Justice, Government of Pakistan, the Chief Secretary, Punjab, the Secretary

School Education Department, and the Inspector General of Police,
Punjab, for compliance.

(Tariq Saleem Sheikh)
Judge

Naeem

Approved for reporting

Judge